

GORSUCH, J., dissenting

tial.”¹⁷ And in 1785, the Continental Congress considered an ordinance declaring that a defendant could “plead a formal Acquittal on a Trial” in a maritime court “for the same supposed Offences, in a similar Court in one of the other United States.”¹⁸ In all of these examples, early legislators—including many of the same people who would vote to add the Fifth Amendment to the Bill of Rights just a few years later—recognized that transgressions of state and federal law could constitute the “same offence.”

The history of the Double Jeopardy Clause itself supplies more evidence yet. The original draft prohibited “‘more than one trial or one punishment for the same offence.’”¹⁹ One representative then proposed adding the words “‘by any law of the United States’” after “‘same offence.’”²⁰ That proposal clearly would have codified the government’s sovereign-specific view of the Clause’s operation. Yet, Congress proceeded to reject it.

Viewed from the perspective of an ordinary reader of the Fifth Amendment, whether at the time of its adoption or in our own time, none of this can come as a surprise. Imagine trying to explain the Court’s separate sovereigns rule to a criminal defendant, then or now. Yes, you were sentenced to state prison for being a felon in possession of a firearm. And don’t worry—the State can’t prosecute you again. But a federal prosecutor *can* send you to prison again for exactly the same thing. What’s more, that federal prosecutor may work hand in hand with the same state prosecutor who already went after you. They can share evidence and discuss what worked and what didn’t the first time around. And the federal prosecutor can pursue you even if you were *acquitted* in the state case. None of that offends the Constitution’s plain words protecting a person from being placed

¹⁷ 10 *id.*, at 72 (W. Ford ed. 1908).

¹⁸ 29 *id.*, at 803 (J. Fitzpatrick ed. 1933).

¹⁹ 1 *Annals of Cong.* 753 (1789).

²⁰ *Ibid.*